WORK ORDER

Shapoorji Pallonji ENGINEERING & CONSTRUCTION

Regional office:
SP INFOCITY, Incubator No.4, Hadapsar, Pune Saswad Road,
Fursungi, Pune, Maharashtra, India– 412 308
(T) 66725000 / 555, (F) 66725001

Site Office –
Shapoorji Pallonji & Co Pvt. Ltd.
Mahindra Tower Project.,
Plot No. A-1, Nighoje, Chakan MIDC, Taluka - Khed, District - Pune 410 501.

SPCPL/P-RO/1374/MTP-2018/011
Date : 30/04/2018

M/s NIHVA TECHNOLOGIES PVT LTD
187, G-Block, Thermax chowk, MIDC
Chinchwad, Pune – 411019.

Kind Attention	:	Mr. Ravindra Kharat, Mob : 7410169333
Subject	:	Motorized Rolling Shutter & Manual Rolling Shutter at Mahindra Tower Project at Chakan, Pune
Reference	:	Your Quotation Rev-1 SQT/17-18/0753 Dated 21-02-2018

Dear Sir,

Pursuant to your quotation and subsequent discussions and agreement reached over between us, we are pleased to place our work order for works of **Motorized Rolling Shutter & Manual Rolling Shutter works for Mahindra Tower Project at MIDC, Chakan, Pune** mentioned in Bill of Quantities, terms and conditions.

Scope of subcontractor:-

Motorized Rolling Shutter & Manual Rolling Shutter works for Mahindra Tower Project at MIDC, Chakan, Pune as mentioned in Bill of Quantities.

Scope of Contractor (SPCPL):-

Mahindra Tower Project at MIDC, Chakan, Pune

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BILL OF QUANTITIES (BOQ)

Sno	Description	Unit	Approx. Qty.	Rate	Amount
GA.33	Instalation Charges for Manually operated GI Rolling Shutter of GI lath section of 18 SWG tested mild steel strips at 75mm rolling centers interlocked together through their entire length and jointed together at the end by end locks mounted on specially designed pipe shaft with brackets, 100 mm wide guide channels for opening width up to 4.0m and 150mm wide guide channel for opening width more than 4.0m and arrangements for inside and outside locking with push and pull operation, wire springs, top cover including a coat of red oxide zinc chromate primer and two coats of synthetic enamel paint of approved colour, shade and brand etc, all complete as per IS 6248 and specification of approved make of following types: The bottom lath shall be coupled to a lock plate fabricated from 3mm thick galvanised steel plate and securely riveted with stiffening angles.(partly coiled and lath/full lath). The shutter should withstand wind speed of 47meters per second. Shutter Size 3.0M x 3.0M	Nos	1		
GB.15	Installation Providing and fixing in position Electrically - Operated Rolling Shutters made up in 1.2mm thick GI sheets finished in One coat of grey epoxy primer by spray method. Rate to be including providing ball bearings, pulleys, side motors of Power 0.55 kW with integrated safety brake, necessary accessories such as guide channels, chain or handle set, locking arrangement, top cover and making holes in brickwork or RCC work and restoring the same and fixing strike plate of 100 x 6 mm MS flat in flooring and all materials and measures required to complete the job. Shutter Size 4.0M x 4.0M	Nos	1		
Total Amount					

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The value of this subcontract for carrying out the whole works as described above will be **Rs** [redacted] excluding GST. GST shall be paid extra as applicable against Tax Invoice.

Continuous

TERMS AND CONDITIONS OF SUBCONTRACT:

1) Definitions and Interpretation

1.	Owner	:	Owner means **MAHINDRA VIHICALMANUFACTURES LTD**
2.	Contractor	:	Contractor means **SHAPOORJI PALLONJI CO. PVT. LTD.**
3.	Subcontractor	:	Subcontractor means **M/S NIHVA TECHNOLOGIES PVT LTD**
4.	Subcontract	:	Contract between Contractor and subcontractor

2) Subcontractor's General Responsibilities

The Subcontractor shall, with due care and diligence, design (to the extent provided for by the Subcontract) execute and complete the Subcontract Works and remedy any defects therein in accordance with the provisions of the Subcontract. The Subcontractor shall submit Shop drawings & get it approved from Contractor. The Subcontractor shall provide all superintendence, labour, tools & tackles, machineries, Subcontractor's Equipment and all other things, whether of a temporary or permanent nature, required in and for such execution, completion and remedying of any defects, so far as the necessity for providing the same is specified in or is reasonably to be inferred from the Subcontract.

3) Subcontractors use of contractors equipment and /or other facilities:-

The subcontractor shall arrange at his own expense all tools and equipment (hereinafter referred to as T&P) required for execution of the work.

Water & Electricity shall be supplied to you free of cost at one point only. Any further distribution shall be arranged by you at your own cost. Nothing extra shall be payable for this.

Scaffolding (material/labour) / Safety equipment shall be provided to the Subcontractor free of cost but on returnable basis.

All material shall be in Subcontractor's scope. Material supplied by SPCPL shall be on debitable basis. Debit / Recovery rate shall be actual purchase rate + 5% handling charges.

4) Program to be submitted by Subcontractor.

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Within 10 days' time the Subcontractor shall need to submit to the Contractor for his consent a detailed construction program, in such form and detail as set out within the Main Contract.

5) Governing Law

The governing law would be law of India.

6) Priority of Subcontract Documents :-

a) The Subcontract Agreement.
b) BOQ
c) Technical Specification (If Provided by Contractor)
d) Any other document forming part of the Subcontract.

7) Possible Effects of Subcontractor's Breaches of Subcontract

If the Subcontractor commits any breaches of the Subcontract, he shall indemnify the Contractor against all costs and damages for which the Contractor becomes liable under the Main Contract, and for all direct and indirect costs that the Contractor has incurred or may incur, as a result of such breaches. In such event, the Contractor may, without prejudice to any other method of recovery, deduct such costs and damages and all direct and indirect cost incurred, or which may be incurred, from monies otherwise becoming due to the Subcontractor.
During the subcontract period if subcontractor terminate the work without prior permission of contractor, in this case his retention amount and all the dues will be forfeited and subcontractor will not be entitled for any claim against his amounts due.

8) Indemnification for Misuse of Temporary Works, Contractor's Equipment and/or Other Facilities.

The Subcontractor shall indemnify the Contractor against any damages arising from the misuse by the Subcontractor, his agents, servants or workmen, of Temporary Works, Contractor's Equipment and/or other facilities provided for his use by the Contractor.

9) Working Hours on Site.

The Subcontractor shall observe/obey working hours as per statutory rules and laws, unless otherwise agreed, and shall comply with all rules and regulations governing the execution of the work, the arrival at and the departure from the Site of materials and Subcontractor's Equipment and the storage of materials and Subcontractor's Equipment on the Site.

10) Subcontractor's Obligation to Permit Access to Subcontract Works

The Subcontractor shall permit the Contractor, the Owners Representative, and any person authorized by either of them, to have reasonable access, during working hours, to the Subcontract

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Works and to the places on the Site where any work or materials therefor are being executed, prepared or stored. The Subcontractor shall also permit or procure reasonable access for the Contractor, the Owners Representative, and any person authorized by either of them, to such places off the Site where work is being executed or prepared by or on behalf of the Subcontractor in connection with the Subcontract Works.

11)Commencement and Completion

Commencement Date: 01.01.2018. Completion date as per approved CS is 4 months from Commencement whereas 4 -6 weeks from the date of receipt of confirmed purchase order, Advance Payment & Drawing approval as per quotation; please confirm/correct.

12)Damages for Delay

If the Subcontractor fails to comply with the Subcontractor's Time for Completion, then the Subcontractor shall pay to the Contractor the liquidated Damages 0.5% of Subcontract value per week of delay. Maximum limit of liquidated damages shall be 5% of Subcontract Value.

13)Instructions under Subcontract

The Subcontractor shall take instructions only from the Contractors Representative.

14)Valuation and Variation

The rates finalized are firm & shall remain valid till the completion of the work. Quantity indicated in the scope of the work is indicative and may vary upto any extent subcontractor is not entitled for any claim due to variation in quantity.

15)Indemnities

The Subcontractor shall, except if and so far as the Subcontract provides otherwise, indemnify the Contractor against all losses and claims in respect of

(a) Death of or injury to any person, or

(b) Loss or damage to any property.

(c) Death of or injury to any person, or loss or damage to any proper.

Resultant from any omission, defect, failure of any works designed by the sub-contractor, his sub-contractors or any consultant or agent employed by him which may arise out of or in consequence of the execution, design (if applicable) and completion of the Subcontract Works and the remedying of any defects therein, and against all claims, proceedings, damages, costs, charges and expenses whatsoever in respect thereof or in relation thereto.

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16)Subcontractor's Obligations before Taking-Over

If the Subcontractor shall complete the Subcontract Works before the issue of a Taking-Over/Handing Over/Virtual Completion Certificate (herein after referred to as the Taking Over Certificate) as defined under the Main Contact in respect of the Main Works, or, where under the Main Contract a Taking-Over Certificate is issued in respect of a Section or part of the Main Works, before a Taking-Over Certificate is issued in respect of the Section or Sections or part or parts of the Main Works in which the Subcontract Works are comprised, the Subcontractor shall continue to maintain the Subcontract Works in the condition required by the Main Contract to the satisfaction of the Contractor. The Subcontractor shall remedy every defect therein from whatever cause arising until a Taking-Over Certificate is issued in respect of the Main Works or such Section or Sections or part or parts, the Subcontractor shall not be entitled to any additional payment for so doing unless such defect is caused by the act or default of the Owner, his agents, servants or workmen under the Main Contract or of the Contractor, his agents, servants or workmen under the Subcontract.

Contractor shall submit on the non-judicial stamp of Rs.200/- in the approved format for after completion and handing over the building to the Owner.

17)Subcontractors obligation to insure :-

All risks of loss or damage to physical property and of personal injury and death which arise during and in consequence of the performance of the Subcontract are the responsibility of the Subcontractor. This clause is applicable on back to back basis of Main contract document

18)Sub-contracting

The Subcontractor shall not subcontract the whole of the Subcontract Works, nor shall he subcontract any part of the Subcontract Works without the prior consent of the Contractor. Any such consent shall not relieve the Subcontractor from any liability or obligation under the Subcontract and the Subcontractor shall be responsible for the acts, defaults and neglects of any of his subcontractors, including such subcontractor's agents, servants or workmen as fully as if they were the acts, defaults or neglects of the Subcontractor, his agents, servants or workmen. Provided that the Subcontractor shall not be required to obtain such consent for: the provision of labour, or the purchase of materials which are in accordance with the standards specified in the Subcontract and/or the Main Contract.

19)Defects

The Subcontractor shall make good at his own cost and to the satisfaction of the Engineer In Charge / Architect, all defects, shrinkage's or small faults, arising in the opinion of the Contractor from work or materials not being in accordance with the Drawings or Specifications or Schedule of Quantities or the Instructions of the Contractor, which may appear within "Defects Liability Period"

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Such defects, shrinkage's shall upon directions in writing of the Contractor, and within such reasonable time as shall be specified therein be amended and made good by the subcontractor, at his own cost unless the Contractor shall decide that he ought to be paid for such amending and making good and in case of default the Contractor may employ and pay other Subcontractor to amend and make good such defects, shrinkage, settlements or other faults and all damages loss and expense consequent thereon or incidental thereto shall be made good and borne by the Subcontractor and such damage, loss or expense shall be recoverable from him by the Contractor or may be deducted by the Contractor , in lieu of such amending and making good from any monies due to the Subcontractor a sum as equivalent to the cost of amending such work and in the event of the Retention Amount being insufficient recover the balance from the Subcontractor, together with any expenses the Contractor may have incurred in connection therewith.

20)Payment Terms

Payment will be monthly on actual basis (work done) after **30** days of the submission of certified running bills. Final bill will be submitted after completion of all works.

Retention amount equal to **5%** of total work done carried out shall be retained from each bill and this will be released after **Eighteen (18)** months from the date of Entire completion of the scope and handing over to Owner

As per approved CS, payment term is- 100% Payment against material after delivery at site & 100% payment against installation after installation.

Final payment shall only be done only after receipt of payment from the Employer. Final payment shall not become due to the Sub Contractor unless the Sub Contractor has signed, in full and final agreement of all amounts due, and all claims under this Sub-Contract, a Final Account Statement as issued to him by the Contractor.

Final payment shall be due and payable to the Subcontractor until all the as–built documentation, project close out documentation, as-built drawings, the performance securities, mobilization guarantee, works guarantees and warranties, and all documentation to be supplied by the subcontractor under the subcontract and the Main Contract, have been provided by the Subcontractor.

21)Mode of Measurement: -

Mode of measurement will be same as under main Contract by Employer to Contractor. Quantities as certified by Employer to Contractor shall be certified to Subcontractor and shall be paid at the rates agreed between Contractor and subcontractor. No claim for additional quantities shall be entertained in this respect for any reason whatsoever.

22)Termination of Main Contract

If the Contractor's employment under the Main Contract is terminated, or if the Main Contract is otherwise terminated, for any reason whatsoever before the Subcontractor has fully performed his

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obligations under the Subcontract, then the Contractor may at any time thereafter by notice to the Subcontractor forthwith terminate the Subcontractor's employment under the Subcontract and thereupon the Subcontractor shall, with due expedition remove his staff and workmen and Subcontractor's Equipment from the Site.

23)Termination of Subcontract

The Subcontractor is deemed by law unable to pay his debts as they fall due, or enters into voluntary or involuntary bankruptcy, liquidation or dissolution (other than a voluntary liquidation for the purposes of amalgamation or reconstruction), or becomes insolvent, or makes an arrangement with, or assignment in favour of, his creditors, or agrees to carry out the Subcontract under a committee of inspection of his creditors, or if a receiver, administrator, trustee or liquidator is appointed over any substantial part of his assets, or if any act is done or event occurs with respect to the Subcontractor or his assets which, under any applicable law, has a substantially similar effect to any of the foregoing acts or events, or has an execution levied on his goods,

a. The Subcontractor has repudiated the Subcontract,

b. The Subcontractor, without reasonable excuse, has failed to commence or proceed with the Subcontract in time.

c. The Subcontractor refuses or neglects to remove defective materials or remedy defective work after being instructed so to do by the Contractor

d. The Subcontractor, despite previous warning from the Contractor, in writing, is otherwise persistently or flagrantly neglecting to comply with any of his obligations under the Subcontract.

e. The Contractor is required by the Owners Representative to remove the Subcontractor from the Main Works after due notice in writing from the Owners Representative to the Contractor in accordance with the Main Contract,

then in any such event, and without prejudice to any other rights or remedies, the Contractor may by a notice to the Subcontractor forthwith terminate the Subcontractor's employment under the Subcontract and thereupon the Contractor may take possession of all materials, Subcontractor's Equipment and other things whatsoever brought on to the Site by the Subcontractor and may by himself or any other contractor use them for the purpose of executing and completing the Subcontract Works and remedying any defects therein and may, if he thinks fit, sell all or any of them and apply the proceeds in or towards the satisfaction of monies otherwise due to him from the Subcontractor.

24)Settlement of Dispute

If a dispute of any kind whatsoever arises between the Contractor and the Subcontractor in connection with, or arising out of, the Subcontract or the execution of the Subcontract Works, whether during the execution of the Subcontract Works or after their completion and whether

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before or after repudiation or other termination of the Subcontract, then the decision and conclusion by Contractor's project Incharge will be final and binding on the subcontractor.

25)Escalation

The rates finalized are firm & shall remain valid till completion of the work. There will be no escalation on the same under any circumstances. Even small quantities of work shall be carried out at the same rate.

26)TAX

Rates quoted shall include royalty charges, Octroi, taxes, sales tax on works contract etc. as per prevailing rules and regulations except GST.

Any changes in the taxes due to change in legislation or for any other reason shall not be payable to the Subcontractor.

GST shall be extra wherever applicable as per Original Tax Invoice. However, Supplier further unconditionally agrees, accepts and admits that the amount payable to Supplier with regards to actual payment due under GST shall be taken into account after considering all the inputs and credits received and availed by the Supplier while executing the Works under the Subcontract.
Further, Supplier fully and unconditionally agrees, accepts and undertakes that the benefit of tax on any input or input service utilized during the process of developing a product or procurement of any Goods or availing any service/s with regards to or in connection with or in respect of or in relation to this Subcontract Agreement would be invariably passed on to SPCPL including any extra input tax credit (that may be applicable as against earlier). Supplier further fully agrees and also unconditionally undertakes that any benefit availed through or by way of reduction in rate of tax on any supply of goods or procurement of services with regards to or in connection with or in respect of or in relation to the above- mentioned Subcontract Agreement would also be passed on to SPCPL and Supplier would fully comply with the provisions of section 171 of CGST Act or any other applicable legislation in this regard.
Supplier also agrees and undertakes that during the stage of negotiations, Supplier has assured SPCPL that all the benefits on account of implementation of GST have been passed on to it at the time of giving the offer but if any of the relevant benefit remains to be passed on, will be passed on during the tenure of this Subcontract Agreement.
Quoted rates for all items shall include the following: -

All type of testing (in-house/ third party), Material test certificates / reports and all the testing facility and Testing procedure must be approved from Employer and contractor

27)Safety Conditions:

The Subcontractor shall, throughout the execution and completion of the Works and the remedying of any defects therein:

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a. Have full regard for the safety of all persons entitled to be upon the Site and keep the Site (so far as the same is under his control) and the Works (so far as the same are not completed or occupied by the Subcontractor) in an orderly state appropriate to the avoidance of danger to such persons.

b. Provide and maintain at his own cost all lights, guards, fencing, warning signs and watching, when and where necessary or required by the Engineer or by any duly constituted authority, for the protection of the Works or for the safety and convenience of the public or others, and take all reasonable steps to protect the environment on and off the Site and to avoid damage or nuisance to persons or to property of the public or others resulting from pollution, noise or other causes arising as a consequence of his methods of operation.

c. Subcontractor shall follow the safety norms as per Main Contract.

d. Wearing of all PPE's i.e. helmets, safety belt & safety shoes etc. is compulsory for all workers.

e. PPE's if issued then it will be on returnable basis.

f. Labour below 18 yrs. shall not be deployed by Subcontractor in work space\

28)Compliance with Labour Laws

The Subcontractor shall comply with the provision of all labour Laws and more particularly with the Factories Act, the Contract Labour (statutory obligations Regulation and Abolition) Employees Provident Fund Act, 1952, Employees State Insurance Act, 1948 Safety rules and regulations, and such other enactments in so far as they are applicable to his workers. The Subcontractor shall make such payments and contributions as required under the said enactments. The Subcontractor shall also comply with the provisions of minimum wages Act, 1948 as applicable to Construction Industry and the rules framed thereunder as well as the related notification/orders/rules/laws issued by the appropriate Authorities.
Subcontractor to submit the records / proofs of payments done/compliances done for all mentioned laws.

29)Defect Liability Period:

Defect Liability Period is Eighteen (18) months from date of Entire completion of the scope and handing over to Owner and issuance of taking over certificate by Contractor to Subcontractor after receiving taking over certificate for the main contract from Owner to Contractor and include monsoon period also.

30)Sub-Contractor to Keep Site Clear:

Proper housekeeping shall be maintained during execution of work. Subcontractor shall keep the Site reasonably free from all unnecessary obstruction and shall store or dispose of any

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Subcontractor's Equipment and surplus materials and clear away and remove from the Site any wreckage, rubbish or Temporary Works no longer required.

31)Clearance of Site on Completion:

Upon the issue of any Taking-Over Certificate the Subcontractor shall clear away and remove from that part of the Site to which such Taking-Over Certificate relates all Subcontractor's Equipment, surplus material, rubbish and Temporary Works of every kind, and leave such part of the Site and Works clean and in a workmanlike condition to the satisfaction of the Architect. Provided that the Subcontractor shall be entitled to retain on Site, until the end of the Defects Liability Period, such materials, Subcontractor's Equipment and Temporary Works as are required by him for the purpose of fulfilling his obligations during the Defects Liability Period.

Thanking you,

Yours faithfully

For SHAPOORJI PALLONJI & CO.PVT. LTD.

FOR NIHVA TECHNOLOGIES PVT LTD

Contractor Representative

(Project In Charge)

Subcontractor Representative